



Bill Number: S.B. 1108

Kavanagh Floor Amendment

**Reference to: REGULATORY AFFAIRS AND GOVERNMENT
EFFICIENCY Committee Amendment**

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

- Adds an emergency clause.

KAVANAGH FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1108
(Reference to REGULATORY AFFAIRS AND GOVERNMENT EFFICIENCY Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{[Orange lowercase strikeout in double curly brackets]}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Heading change

3 The chapter heading of title 44, chapter 38, Arizona Revised
4 Statutes, is changed from "BUSINESSES EXEMPT FROM MASK MANDATE" to
5 "BUSINESSES GENERALLY".

6 Sec. 2. Title 44, chapter 38, article 1, Arizona Revised Statutes,
7 is amended by adding section 44-7952, to read:

8 44-7952. Cash transactions; mandatory rounding of transaction
9 totals; notice; enforcement

10 A. IF ONE-CENT COINS ARE NOT AVAILABLE OR ARE NOT USED BY A SELLER
11 AT A POINT OF SALE, THE SELLER SHALL APPLY SWEDISH ROUNDING TO A TOTAL
12 TRANSACTION AMOUNT THAT ROUNDS THE TOTAL TRANSACTION AMOUNT TO THE NEAREST
13 FIVE-CENT INCREMENT. IF A TOTAL TRANSACTION AMOUNT ENDS:

1 1. IN ONE OR TWO CENTS, THE TOTAL TRANSACTION AMOUNT IS ROUNDED
2 DOWN TO THE NEAREST MULTIPLE OF FIVE CENTS.

3 2. IN THREE OR FOUR CENTS, THE TOTAL TRANSACTION AMOUNT IS ROUNDED
4 UP TO THE NEAREST MULTIPLE OF FIVE CENTS.

5 3. IN SIX OR SEVEN CENTS, THE TOTAL TRANSACTION AMOUNT IS ROUNDED
6 DOWN TO THE NEAREST MULTIPLE OF FIVE CENTS.

7 4. IN EIGHT OR NINE CENTS, THE TOTAL TRANSACTION AMOUNT IS ROUNDED
8 UP TO THE NEAREST MULTIPLE OF FIVE CENTS.

9 B. SWEDISH ROUNDING APPLIES TO A FINAL TOTAL TRANSACTION AMOUNT OF
10 A CASH TRANSACTION AFTER TAXES, FEES AND OTHER CHARGES ARE CALCULATED.

11 C. SWEDISH ROUNDING DOES NOT APPLY TO~~[-~~

12 ~~1. THE SALE OF AN INDIVIDUAL ITEM.~~

13 ~~2. A TRANSACTION THAT IS PAID BY A CREDIT CARD, DEBIT CARD,~~
14 ~~ELECTRONIC FUNDS TRANSFER, MOBILE PAYMENT APPLICATION OR OTHER NON-CASH~~
15 ~~PAYMENT METHOD.] [A TRANSACTION THAT IS PAID BY A CREDIT CARD, DEBIT CARD,~~
16 ~~ELECTRONIC FUNDS TRANSFER, MOBILE PAYMENT APPLICATION OR OTHER NON-CASH~~
17 ~~PAYMENT METHOD.]~~

18 D. A SELLER THAT IS SUBJECT TO THIS SECTION SHALL POST A NOTICE
19 THAT IS VISIBLE TO CUSTOMERS AT THE POINT OF SALE STATING "CASH
20 TRANSACTIONS ARE ROUNDED TO THE NEAREST FIVE-CENT INCREMENT PURSUANT TO
21 STATE LAW".

22 E. A SELLER MAY NOT APPLY A ROUNDING METHOD OTHER THAN SWEDISH
23 ROUNDING.

24 [F. A SELLER SHALL CALCULATE AND REMIT ALL TAXES AND FEES THAT ARE
25 IMPOSED BY A STATE OR MUNICIPAL TAXING AUTHORITY BASED ON THE SALES PRICE
26 BEFORE THE CASH TRANSACTION WAS ROUNDED.]

27 ~~[F.]~~ [G.] THIS SECTION SHALL BE ENFORCED BY THE WEIGHTS AND
28 MEASURES SERVICES DIVISION OF THE ARIZONA DEPARTMENT OF AGRICULTURE
29 PURSUANT TO TITLE 3, CHAPTER 19. THE DIVISION MAY ISSUE WARNINGS AND
30 ORDERS AND IMPOSE CIVIL PENALTIES IN ADDITION TO OTHER ENFORCEMENT
31 MEASURES.

32 [H. A SELLER IS NOT IN VIOLATION OF ANY STATE OR MUNICIPAL
33 REQUIREMENT, LAW, REGULATION OR STANDARD IF THE ACTION IS BASED ON
34 COMPLIANCE WITH THIS SECTION.]

35 ~~[G.]~~ [I.] THIS SECTION IS INTENDED TO OPERATE CONSISTENTLY WITH
36 FEDERAL LAW THAT GOVERNS UNITED STATES COINAGE AND LEGAL TENDER.

37 ~~[H.]~~ [J.] THIS SECTION DOES NOT:

38 1. DECLARE ANY COIN OR CURRENCY INVALID AS LEGAL TENDER.

39 2. REQUIRE ACCEPTANCE OR REFUSAL OF ANY SPECIFIC DENOMINATION OF
40 THE UNITED STATES COIN OR CURRENCY.

41 3. PREEMPT, CONFLICT WITH OR SUPERSEDE ANY PROVISION OF FEDERAL LAW
42 REGULATION.

43 <<Sec. 3. Legislative intent

44 [The legislature intends that section 44-7952, Arizona Revised
45 Statutes, as added by this act, protects businesses and governmental
46 agencies in this state.]>>

1 <<Sec. 4. Emergency

2 {{This act is an emergency measure that is necessary to preserve the

3 public peace, health or safety and is operative immediately as provided by

4 law.}}>>

5 Enroll and engross to conform

6 Amend title to conform

JOHN KAVANAGH

1108FloorKAVANAGH.docx

02/19/2026

10:58 AM

C: SK

130VVNTQB